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Tentative Ruling

Re: ***Lopez v. Manulife Investment Management Farmland Management Services, Inc.***
Superior Court Case No. 25CECG02316

Hearing Date: May 19, 2026 (Dept. 502)

Motion: By Defendant to Compel Arbitration, Dismiss Class Claims,
and Stay the Proceedings

Tentative Ruling:

To deny. (9 U.S.C., §§ 3 et seq.; Code Civ. Proc., §§ 1281.2, 1281.4.)

Explanation:

Evidentiary Objections

The court overrules defendant's evidentiary objection numbers 1 through 16. The court sustains plaintiff's evidentiary objections to the Declaration of Segovia paragraphs 5, 8, and 13. The court overrules plaintiff's evidentiary objections to the Declaration of Segovia paragraphs 9 and 10. The court sustains plaintiff's objections to paragraph 11 for the assertions on information and belief, such that what remains is the assertion of Jose Ramirez's prior employment with O.F.R.

Merits

A trial court is required to grant a motion to compel arbitration "if it determines that an agreement to arbitrate the controversy exists." (Code Civ. Proc., § 1281.2.) However, there is "no public policy in favor of forcing arbitration of issues the parties have not agreed to arbitrate." (*Garlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505) "Thus, in ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute." (*Mendez v. Mid-Wilshire Health Care Center* (2013) 220 Cal.App.4th 534, 541.)

The party moving to compel arbitration bears the burden of proving by a preponderance of the evidence the existence of an arbitration agreement. (*Fleming v. Oliphant Financial, LLC* (2023) 88 Cal.App.5th 13, 18; *Lane v. Francis Capital Management LLC* (2014) 224 Cal.App.4th 676, 683.) In order to determine whether an arbitration agreement exists, the court may need to assess the parties to any such agreement. (*Melchor Investment Co. v. Rolm Systems* (1992) 3 Cal.App.4th 587, 592.) After the moving party establishes the existence of an arbitration agreement between the parties, then the burden shifts to the opposing party to show that the agreement is otherwise unenforceable. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219.)

Nonsignatory

Defendant is not a signatory to the arbitration agreement at issue here, but seeks to compel plaintiff to arbitration. “Generally speaking, one must be a party to an arbitration agreement to be bound by it or invoke it.” (*Westra v. Marcus & Millichap Real Estate Investment Brokerage Co., Inc.* (2005) 129 Cal.App.4th 759, 763.) “The strong public policy in favor of arbitration does not extend to those who are not parties to an arbitration agreement, and a party cannot be compelled to arbitrate a dispute that he has not agreed to resolve by arbitration.” (*Buckner v. Tamarin* (2002) 98 Cal.App.4th 140, 142, internal quotes and citation omitted.)

Here, the agreement provides,

“The Employee and the Company both agree that except as otherwise provided in this Policy, any claim, dispute, and/or controversy that either party may have against the other ... which would otherwise require or allow resolution by any court between Employee and the Company (or between Employee and the Company's owners, parent or subsidiary companies, affiliates, directors, officers, managers, employees, agents, and parties affiliated with its employee benefit and health plans) arising from, related to, or having any relationship or connection whatsoever with an Employee seeking employment with, employment by, or other association with or termination by the Company ... shall be submitted to and determined exclusively by binding arbitration.”

(Segovia Decl., Exh. A.)

The arbitration agreement defines the Company as “O.F.R., Inc.” (*Ibid.*) In the Spanish version, plaintiff's name appears on the signature line for the employee and “Jose Ramirez” appears on the signature line designated for O.F.R., Inc. (*Id.* at Exh. B.) Jose Ramirez was employed as an O.F.R. supervisor at the time. (*Id.* at ¶ 11.) Defendant presents the arbitration agreement as a stand-alone document. (*Id.* at Exhs. A, B.)

Equitable Estoppel

Defendant argues it should be permitted to compel plaintiff to arbitration under the theory of equitable estoppel. Under the theory of equitable estoppel a plaintiff may be compelled to arbitrate with a nonsignatory where the claims asserted by the plaintiff are inextricably intertwined with the underlying agreement. (*Soltero v. Precise Distribution, Inc.* (2024) 102 Cal.App.5th 887, 893.) The parties have identified a dispute between *Garcia v. Pexco, LLC* (2017) 11 Cal.App.5th 782 and *Soltero v. Precise Distribution, Inc.*, *supra*, 102 Cal.App.5th 887 regarding the doctrine of equitable estoppel in the context of nonsignatories to an arbitration agreement. Both of these cases involved staffing companies, but the court in *Soltero* noted it did not involve a situation where co-defendants were being sued on a joint employer theory. (*Soltero v. Precise Distribution, Inc.*, *supra*, 102 Cal.App.5th at p. 897.)

Defendant asserts that *Garcia* is good law in light of the discussion of it in *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1132. However, this fails to consider that the California Supreme Court cites *Garcia* as legal authority on compelling arbitration where claims are “intimately founded in and intertwined with” the agreement, but *Soltero* for the authority “that one must be a party to the arbitration agreement either to be bound by or to invoke it.” (*Ford Motor Warranty Cases*, *supra*, 17 Cal.5th at pp. 1128, 1132.) Thus, the California Supreme Court has cited to both cases involved in the split of authority, but has not addressed the split.

Where appellate court decisions are in conflict with one another, then trial courts must choose between the conflicting decisions. (*Auto Equity Sales, Inc. v. Superior Court of Santa Clara County* (1962) 57 Cal.2d 450, 456.) Soltero is more closely aligned with the instant matter. Like in *Soltero*, plaintiff has only named defendant Manulife in the complaint, not the staffing agency, and has asserted Labor Code violations. Here, plaintiff has not named O.F.R. as a defendant in this lawsuit, nor does plaintiff mention his employment with O.F.R. as a basis for liability against the named defendant. Also, here the arbitration agreement at issue was presented as a stand-alone document.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 05/15/26
(Judge's initials) (Date)